

PANEL 1/12 – CONCEPT AND PRE-GST PROBLEM

GST = destination-oriented tax on supply, implemented through Union and State laws.

Pre-GST: manufacture + service + sale + entry taxes fragmented credit.

Cascading and border friction required constitutional, not merely statutory, repair.

Answer line: pooled sovereignty created a credit-linked common market.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 2/12 – 101ST AMENDMENT SURGERY

2016: inserted Articles 246A, 269A and 279A; amended 270, 286 and 366.

Article 268A service-tax route omitted; Seventh Schedule tax entries altered.

Article 366(12A): GST on supply, excluding alcoholic liquor for human consumption.

Amendment enables architecture; Acts and notifications create operative liability.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 3/12 – COMPETENCE, FLOW AND TERRITORIAL LIMIT

246A: Parliament + States legislate GST; Parliament exclusive for inter-State.

269A: Union levies/collects inter-State GST; imports deemed inter-State.

Place-of-supply + apportionment support destination revenue.

270 distributes relevant GST; 286 limits State tax on outside/import-export supplies.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 4/12 – COUNCIL COMPOSITION

Article 279A forum: Union Finance Minister chairs.

Union MoS Revenue/Finance + one finance/tax or nominated minister per State.

State members choose Vice-Chairperson and period.

Revenue Secretary/CBIC Chair support; they are not constitutional voting members.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 5/12 – RECOMMENDATIONS AND PETROLEUM

279A(4): subsumed levies, taxable/exempt supplies, model laws, thresholds and rates.
Also place of supply, disaster rate, specified-State provisions and other GST matters.
279A(5): Council recommends date for crude, HSD, petrol, natural gas and ATF.
Alcohol excluded; petroleum deferred: never merge the categories.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 6/12 – QUORUM, VOTE AND CONSENSUS

Quorum $\frac{1}{2}$ total members | Union $\frac{1}{3}$ | States together $\frac{2}{3}$.

Decision $\geq \frac{3}{4}$ weighted votes present and voting.

Neither level can pass alone; Union blocking power is arithmetic, not express veto.

Consensus is usual practice; vacancy/defect protection cannot cure missing majority.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 7/12 – DUAL GST, ITC AND GSTN

Intra-State: CGST + SGST/UTGST | inter-State/import: IGST.

ITC offsets eligible input tax against output liability; restrictions remain.

Destination principle uses place-of-supply, credit and settlement.

GSTN is technology infrastructure, not Council, legislature or adjudicator.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 8/12 – RECOMMENDATION TO LAW

Council recommendation -> Parliament/State legislation -> authorised notification.

Administration applies; GSTAT/courts review statutory legality.

Press release != tax liability; verify Gazette instrument and effective date.

Mohit non-binding rule does not excuse breach of a statutory recommendation condition.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 9/12 – BOUNDARIES AND COMPENSATION

Alcohol excluded | petroleum deferred | tobacco within GST + Union excise.

Electricity duty and stamp duty remain separate fields.

Compensation Act: 2015-16 base + 14% projection + cess-funded five-year gap.

Protected entitlement ended 30 June 2022; later cess loan servicing is separate.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 10/12 – MOHIT AND DISPUTE ROUTES

Mohit Minerals (2022): recommendations persuasive, not binding on legislatures.

Article 246A simultaneous power; cooperative federalism through dialogue.

Ocean-freight levy failed in CIF composite-supply/statutory vires setting.

279A(11) intergovernmental mechanism != taxpayer appeal before GSTAT.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 11/12 – INSTITUTIONS AND REFORM

Council recommends | legislatures enact | CBIC/States administer | GSTN enables.

GSTAT hears statutory appeals | Finance Commission advises devolution/grants.

Reforms: reasons, modelling, notification tracker, cess accounts, small-firm support.

Current examples must be official, dated and never converted into a rate catalogue.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.

PANEL 12/12 – TRAPS AND ANSWER SPINE

TRAPS: 122nd Bill/101st Act | 1/2-1/3-2/3-3/4 | alcohol/petroleum.

TRAPS: recommendation/law | GSTN/GSTAT/Council | compensation/cess.

ANSWER: define -> Article -> mechanism -> evidence -> analysis -> qualification.

VERDICT: persuasive coordination + valid law + transparent federal trust.

Follow the rail: constitutional source -> operating mechanism -> legal limit -> answer use.